



CERTAMARIS LEGAL DOCUMENT SYSTEM

Master Subscription Agreement

Enterprise framework agreement for CertaMaris subscriptions and related services.

DOCUMENT ID

CM-LEGAL-07

VERSION

1.0

ISSUE DATE

23 August 2026

STATUS

CONTROLLED EXECUTION TEMPLATE

DOCUMENT OWNER

Legal / Commercial

APPROVER

Authorized CertaMaris Signatory

DOCUMENT PURPOSE / KEY MESSAGE

Provides the principal negotiated agreement governing multiple Order Forms, platform subscriptions, professional services, customer data, confidentiality, risk allocation and legal terms.

EFFECTIVE

Upon authorized execution

CLASSIFICATION

CONFIDENTIAL - LEGAL

LEGAL STATUS

Purpose, Scope and Controlled Use

Enterprise framework agreement for CertaMaris subscriptions and related services.

This document has been populated with CertaMaris standing business, platform, security, privacy, AI and commercial positions. It remains a reusable execution template because the actual counterparty, transaction, fees, dates, signatures, jurisdictional corporate particulars or other deal-specific facts vary by engagement. Those fields must be completed before execution.

CertaMaris standing facts used by this document

- Service model: negotiated business-to-business contracts; no consumer or self-service signup model is assumed by these documents
- Platform: browser-based B2B maritime cybersecurity, compliance, assurance, risk-intelligence and operational-resilience SaaS platform
- Customer owns Customer Content; CertaMaris receives only rights needed to provide, secure and support the Services.
- High-sensitivity cyber posture and vessel/facility technical content is treated as Customer Confidential Information.
- Security reporting: security@certamaris.com
- Procurement/legal-document requests: <https://certamaris.com/contact?intent=procurement>

Transaction-specific fields intentionally left for execution include the actual CertaMaris legal entity and formation jurisdiction (if not already established in the Order Form), counterparty identity, addresses, signatory names/titles, signature dates, commercial scope/fees, and any negotiated governing-law or venue choice.

TERMS / NOTICE

Operative Provisions

CertaMaris-specific standing content for this controlled release.

1. Definitions and Agreement Structure

The Agreement consists of the applicable signed Order Form, these terms or the MSA identified in the Order Form, the DPA, any signed SLA, SOW, security addendum and other document expressly incorporated by reference. CertaMaris uses negotiated B2B contracting rather than consumer self-service terms. In case of conflict, the negotiated Order Form controls for its transaction-specific terms, followed by the DPA for data-protection matters, any signed SLA for service-level matters, the governing MSA/Terms, and incorporated policies, unless a document expressly states a different priority.

2. Orders and Affiliates

Each Order Form is a separate transaction under the governing Agreement and binds the customer and CertaMaris contracting entity identified in that Order Form. A customer affiliate may purchase Services only through an Order Form accepted by CertaMaris; unless expressly stated otherwise, an affiliate does not acquire rights under another affiliate's Order Form. Transaction-specific subscriptions, fleet/vessel scope, term, fees and negotiated deviations are stated in the relevant Order Form.

3. Subscription Services

Subject to the Agreement and payment of applicable fees, CertaMaris provides the hosted subscription Services described in each Order Form for the stated term and scope. Access is limited to Authorized Users and the purchased organization, fleet, vessel, facility, module and usage scope. CertaMaris may improve the Services during the term provided it does not materially reduce the core functionality expressly purchased in the applicable Order Form.

4. Professional Services

Professional services such as implementation, advisory, assessment, training or configuration work are governed by the applicable SOW or Order Form. That document identifies scope, assumptions, dependencies, deliverables, fees, schedule and any acceptance procedure. Material scope changes require a written change order or other authorized amendment; Customer delays or missing dependencies may require schedule and fee adjustment.

5. Customer Responsibilities

Customer will use the Services lawfully and in accordance with the Acceptable Use Policy; provide accurate scope, evidence and instructions; maintain rights and lawful bases for Customer Content; safeguard its own identities, endpoints, vessel/facility systems and integrations; review findings and AI-assisted outputs before reliance; and independently decide and validate corrective actions. CertaMaris supports assurance workflows but does not replace class, flag, port-state, legal, engineering, navigation, emergency-response or operational-safety authority.

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6. Fees and Taxes

Fees, subscription scope and billing frequency are stated in the applicable Order Form. Invoices are due Net 30 unless the applicable Order Form states otherwise. Overdue undisputed amounts may accrue a late charge at the lesser of 1.5% per month or the maximum rate permitted by law. Customer is responsible for applicable sales, use, VAT and similar transaction taxes other than taxes based on CertaMaris's net income, subject to valid exemption documentation. CertaMaris may suspend affected Services for unpaid undisputed amounts after 10 days after written notice for nonpayment of undisputed amounts. to the extent permitted by the Agreement.

7. Customer Data and Data Protection

This section confirms ownership, processing rights, DPA and data-return/deletion obligations. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

8. Security

The applicable agreement references Security Addendum and incident cooperation. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

9. Confidentiality

Each party will protect the other's Confidential Information using at least reasonable care and will use it only to perform or exercise rights under the Agreement. Customer vulnerability findings, network-zone maps, remote-access pathways, technical inventories, cyber plans and actual security posture are Customer Confidential Information. CertaMaris methodology, non-public product architecture, security materials and commercial terms are CertaMaris Confidential Information. Standard exclusions apply for information lawfully public, previously known without duty, independently developed, or rightfully received from a third party. Confidentiality duties continue for five years after disclosure or termination; trade secrets remain protected for so long as they qualify as trade secrets under applicable law. Required legal disclosures are permitted with notice where lawful.

10. Intellectual Property

CertaMaris and its licensors retain all right, title and interest in the Services, software, APIs, Documentation, templates, user-interface designs, control mappings, methodology, Cyber Resilience Twin framework, generalized know-how, and improvements that do not identify or disclose Customer Content. Customer receives only the rights expressly granted in the Agreement. Feedback may be used without restriction provided CertaMaris does not identify Customer or disclose Customer Confidential Information.

TERMS / NOTICE

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11. Third-Party Services

Allocate responsibility for integrations and externally controlled services. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

12. Representations and Warranties

CertaMaris warrants that it will perform the paid Services in a professional and workmanlike manner and substantially in accordance with applicable Documentation during the term. Except for express warranties in the Agreement, the Services and outputs are provided on an 'as is' and 'as available' basis to the maximum extent permitted by law. CertaMaris does not guarantee that use will be uninterrupted or error-free, that every vulnerability or compliance gap will be identified, or that Customer will pass an audit, class review, survey, inspection or regulatory assessment. Official legal, flag, class and regulatory requirements control over software guidance.

13. Indemnification

CertaMaris will defend Customer against a third-party claim that authorized use of the paid Services infringes a United States patent, copyright or trademark and will pay finally awarded damages or approved settlement amounts, subject to prompt notice, CertaMaris control of defense, cooperation, and standard exclusions for Customer Content, unauthorized modifications, combinations, instructions or continued use after notice. Customer will defend CertaMaris against third-party claims arising from Customer Content, unlawful or unauthorized use, or Customer's failure to obtain required rights. The Order Form may modify indemnity scope.

14. Limitation of Liability

Except for Excluded Claims, each party's aggregate liability is capped at the fees paid or payable under the affected Order Form during the 12 months preceding the event giving rise to the claim. Liability for breach of confidentiality, data-protection/security obligations, and CertaMaris IP indemnification is capped at two times the general liability cap. Payment obligations, fraud, willful misconduct, and liability that cannot lawfully be limited are not subject to the contractual caps to the extent stated in the Agreement. To the maximum extent permitted by law, neither party is liable for indirect, incidental, special, consequential, exemplary or punitive damages or lost profits, revenues, goodwill, business opportunity or anticipated savings, even if advised of the possibility, except to the extent an express indemnity requires payment of third-party amounts.

15. Term, Renewal and Termination

The Agreement begins on the effective date stated in the applicable Order Form and continues while an Order Form remains in effect. Unless an Order Form states otherwise, a subscription renews for successive 12-month periods unless either party gives at least 30 days written notice before the then-current term ends. Either party may terminate for material breach not cured within 30 days after written notice for a material breach capable of cure.; the payment cure period is 10 days after written notice for nonpayment of undisputed amounts.. CertaMaris may suspend access for material security risk, unlawful use, Acceptable Use violations, or nonpayment, using reasonable efforts to limit impact. Insolvency and other non-curable termination rights apply as stated in the Agreement and applicable law.

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16. Suspension

Permit proportionate suspension for security, unlawful use or nonpayment. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

17. Compliance

Each party will comply with laws applicable to its performance, including applicable export-control, sanctions, anti-bribery and anti-corruption requirements. Customer will not use the Services for prohibited end users, embargoed activity, unlawful intrusion or safety-critical control. CertaMaris is a workflow and assurance technology provider; it does not issue class, flag-state or regulatory approvals and does not provide legal advice.

18. Insurance

The applicable instrument states any required coverage or reference Insurance Schedule. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

19. Notices and Disputes

Operational notices may be sent through the Services or business email contacts. Formal notices of material breach, termination or legal process must use the notice details in the applicable Order Form or executed agreement and may also be routed through <https://certamaris.com/contact?intent=procurement> for triage. The applicable Order Form controls governing law and venue. If it is silent, the Agreement is governed by the law of the U.S. state in which the CertaMaris contracting entity identified in that Order Form is organized, without regard to conflicts rules, and exclusive venue lies in the state and federal courts located in that jurisdiction. The parties may agree to arbitration, jury waiver or another forum in the Order Form; no separate mandatory consumer arbitration regime is created by this baseline.

20. General

Assignment, force majeure, entire agreement, amendment, waiver, severability, counterparts. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

DOCUMENT CONTROL

Execution, Publication and Revision Record

Reusable records remain controlled; customer/counterparty signatures are completed only for the actual transaction.

CONTROL FIELD	VALUE
Version	1.0
Issue date	23 August 2026
Status	CONTROLLED EXECUTION TEMPLATE
Effective	Upon authorized execution
Document owner	Legal / Commercial
Approver / execution authority	Authorized CertaMaris Signatory
Review trigger	Material legal, provider, privacy, security, jurisdiction, service-model or commercial change

Execution / approval record

CERTAMARIS AUTHORIZED SIGNATORY / APPROVER

Legal entity / role: _____

Name / title: _____

Signature / decision: _____

Date: _____

COUNTERPARTY / SECOND APPROVER AS APPLICABLE

Legal entity / role: _____

Name / title: _____

Signature / decision: _____

Date: _____